

SENATE No. 697

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to increase access to nurse-midwifery services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/4/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>6/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/23/2025</i>

SENATE No. 697

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 697) of Brendan P. Crighton for legislation relative to insurance coverage and access to nurse-midwifery services. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 607 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase access to nurse-midwifery services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 31. The commission shall provide to any active or retired employee of the
4 commonwealth insured under the group insurance commission coverage for services rendered by
5 a certified nurse midwife designated to engage in the practice of nurse-midwifery by the board of
6 registration in nursing pursuant to section 80C of chapter 112; provided, however, that the
7 following conditions are met: (1) the service rendered is within the scope of the certified nurse
8 midwife's authorization to practice by the board of registration in nursing; (2) the policy or
9 contract currently provides benefits for identical services rendered by a health care provider
10 licensed by the commonwealth; and (3) the reimbursement for the services provided shall be in

the same amount as the reimbursement paid under the policy to a licensed physician performing the service in the area served. An insurer may not reduce the reimbursement paid to a licensed physician to achieve compliance with this section.

SECTION 2. Section 47E of Chapter 175 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following sentences:- The reimbursement for the services provided pursuant to this section shall be in the same amount as the reimbursement paid under the policy to a licensed physician performing the service in the area served. An insurer may not reduce the reimbursement paid to a licensed physician in order to comply with this section.

SECTION 3. Chapter 176A of the General Laws is hereby amended by inserting after section 80O the following section:-

Section 8PP. Any contract between a subscriber and the corporation under an individual or group hospital service plan which is delivered, issued or renewed in the commonwealth shall provide as a benefit to all individual subscribers and members within the commonwealth and to all group members having a principal place of employment within the commonwealth for services rendered by a certified nurse midwife designated to engage in the practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112; provided, however, that the following conditions are met: (1) the service rendered is within the scope of the certified nurse midwife's authorization to practice by the board of registration in nursing; (2) the policy or contract currently provides benefits for identical services rendered by a health care provider licensed by the commonwealth; and (3) the reimbursement for the services provided shall be in the same amount as the reimbursement paid under the policy to a licensed

physician performing the service in the area served. An insurer may not reduce the reimbursement paid to a licensed physician in order to comply with this section.

SECTION 4. Section 4G of Chapter 176B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following sentences:- The reimbursement for the services provided pursuant to this section shall be in the same amount as the reimbursement paid under the policy to a licensed physician performing the service in the area served. An insurer may not reduce the reimbursement paid to a licensed physician in order to comply with this section.

SECTION 5. Section 4 of Chapter 176G of the General Laws, as so appearing, is hereby amended by adding the following subsection:-

(g) services rendered by a certified nurse midwife designated to engage in the practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112, subject to the terms of a negotiated agreement between the health maintenance organization and the provider of health care services. The reimbursement for the services provided shall be in the same amount as the reimbursement paid under the policy to a licensed physician performing the service in the area served. An insurer may not reduce the reimbursement paid to a licensed physician in order to comply with this section.